

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[904 NE2d 495, 876 NYS2d 341]

In the Matter of the Ancillary Receivership of RELIANCE INSURANCE COMPANY. THE YALE CLUB OF NEW YORK CITY, INC., Respondent, v RELIANCE INSURANCE COMPANY, by the SUPERINTENDENT OF INSURANCE, as Ancillary Receiver, Appellant.

Decided February 11, 2009

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 2, 2008. The Appellate Division, with two Justices dissenting, affirmed an order and judgment (one paper) of the Supreme Court, New York County (Michael D. Stallman, J.), which had confirmed a Referee's report finding coverage under the insurer's policy and awarded damages in favor of plaintiff insured and against defendant insurer.

Plaintiff insured received a letter from an attorney, prior to the effective date of a claims-made directors and officers liability policy issued by defendant, seeking information regarding allegations that his clients, club employees, had been unlawfully deprived of tips and bonuses. Thereafter, during the policy period, the attorney commenced litigation. Defendant disclaimed coverage on the ground that the letter constituted notice of a claim made and, thus, the claim arose outside the policy period because it was received prior to the date the policy commenced.

The Appellate Division concluded that the letter, which neither made a demand for payment nor advised that legal action was forthcoming, was insufficient to state a claim within the meaning of the policy; that it was not a type of demand that could be defended, settled and paid by the insurer; and that the failure of the policy to provide a definition of "claim" presented an ambiguity that was construed against the insurer.

Matter of Reliance Ins. Co., 55 AD3d 43, affirmed.

HEADNOTE

Insurance — Directors and Officers Liability Policy

The Appellate Division did not err in concluding that a letter sent by an attorney representing plaintiff club's employees, prior to the effective date of a claims-made directors and officers liability policy, did not constitute a claim made against plaintiff for purposes of litigation commenced during the policy period and could not be relied upon by the insurer as a basis to avoid coverage.

APPEARANCES OF COUNSEL

Herzfeld & Rubin, P.C., New York City (*David B. Hamm* of counsel), for appellant.

Cone & Kilbourn, Mount Kisco (*Joseph A. Kilbourn* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs. Based on the arguments presented, the Appellate Division did not err in concluding that the insurance company could not rely on the August 1993 letter as the basis to avoid coverage under the claims-made policy.

Concur: Acting Chief Judge CIPARICK and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES.

[905 NE2d 605, 877 NYS2d 731]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RILEY WILLIAMS, Appellant.

Argued January 15, 2009; decided February 11, 2009

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 11, 2008. The Appellate Division affirmed a judgment of the Supreme Court, Kings County (Michael J. Brennan, J.), which had convicted defendant, upon a jury verdict, of assault in the second degree, attempted sexual abuse in the first degree, criminal possession of a weapon in the fourth degree and criminal mischief in the fourth degree.

People v Williams, 49 AD3d 672, affirmed.

HEADNOTE

Crimes — Proof of Prior Convictions

In a criminal prosecution, the trial court did not abuse its discretion by issuing a *Sandoval* ruling which permitted the People to elicit from the defendant that he had one felony conviction and 45 misdemeanor convictions, but not to go into the underlying facts or circumstances of the convictions. The extent to which the prosecution may use prior convictions to impeach a defendant's testimony is largely, if not completely, a discretionary determination for the trial courts and fact-reviewing intermediate appellate courts. Here, the trial court might have been more discriminating, but there was no legal reason to upset the court's exercise of its discretion.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, New York City, and *Jonathan Garvin* for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Maria Park* and *Leonard Joblove* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

We have repeatedly held that the extent to which the prosecution may use prior convictions to impeach a defendant's testimony "is 'largely, if not completely' a discretionary determination for the trial courts and fact-reviewing intermediate appellate courts, and that generally no further review by this Court is warranted" (*People v Mattiace*, 77 NY2d 269, 274 [1990], quoting *People v Shields*, 46 NY2d 764, 765 [1978]). Here, Supreme Court's *Sandoval* ruling (*People v Sandoval*, 34 NY2d 371 [1974]) permitted the People to elicit from the defendant that he had one felony conviction and 45 misdemeanor convictions, but not to go into the underlying facts or circumstances of the convictions. We conclude here, as we did in *People v Walker* (83 NY2d 455, 458 [1994]), that "the trial court might have been more discriminating," but that there is "no legal reason to upset the court's exercise of its discretion."

Acting Chief Judge CIPARICK and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[904 NE2d 495, 876 NYS2d 341]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHELLE ROUSE, Appellant.

Argued January 7, 2009; decided February 11, 2009

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 29, 2008. The Appellate Division affirmed a judgment of the Supreme Court, Bronx County (Steven Lloyd Barrett, J., on speedy trial motion; Michael A. Gross, J., at trial and sentence), which had convicted defendant, upon a jury verdict, of attempted arson in the third degree.

People v Rouse, 47 AD3d 537, reversed.

HEADNOTE

Crimes — Right to Speedy Trial

Defendant was denied her right to speedy trial when the trial court improperly excluded from the People's six-month readiness period a 30-day adjournment under CPL 30.30 (4) (f), which excludes from the readiness period the time during which a defendant is without counsel through no fault of the court. Defendant was not chargeable with the 30 days on the ground that her codefendant was without counsel, as substitute counsel was appointed to the codefendant at the conclusion of the calendar call at which the People had requested the adjournment. CPL 30.30 (4) (f) does not require the court to determine whether counsel was sufficiently familiar with the case in order for a defendant to be considered with legal representation.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Peter Theis* and *Robert S. Dean* of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (*Jennifer Marinaccio*, *Joseph N. Ferdenzi* and *Stanley R. Kaplan* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the indictment dismissed.

When a defendant is accused of a felony offense, CPL 30.30 requires the People to be ready for trial within six months of the commencement of the criminal action (CPL 30.30 [1] [a]). CPL 30.30 (4) (f) excludes from the readiness time "the period

during which the defendant is without counsel through no fault of the court; except when the defendant is proceeding as his own attorney with the permission of the court.”

The People contend that the 30-day time period from October 5, 2004 to November 4, 2004 was properly chargeable to defendant because her codefendant was “without counsel.” We disagree. Substitute counsel was appointed to codefendant at the conclusion of the October 5, 2004 calendar call, and thus codefendant had counsel during the adjournment period requested by the People. Nor does CPL 30.30 (4) (f) require the court to determine whether counsel was sufficiently familiar with the case in order for a defendant to be considered with legal representation for purposes of the statute.

Accordingly, because the People did not satisfy their statutory readiness obligation, the motion to dismiss the indictment pursuant to CPL 30.30 should have been granted.

Acting Chief Judge CIPARICK and Judges GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

G & T TERMINAL PACKAGING CO., INC., et al., Appellants, v
WESTERN GROWERS ASSOCIATION et al., Respondents.

Submitted December 22, 2008; decided February 11, 2009

Reported below, 56 AD3d 266.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GOLDEN GATE YACHT CLUB, Appellant, v SOCIÉTÉ NAUTIQUE DE
GENÈVE, Respondent, and CLUB NÁUTICO ESPAÑOL DE VELA,
Intervenor-Defendant.

Submitted January 20, 2009; decided February 11, 2009

Reported below, 55 AD3d 26.

Motion by Royal Thames Yacht Club Limited et al. for leave to file a brief amici curiae on the appeal herein dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v QUEN-
TIN ABNEY, Appellant.

Submitted January 20, 2009; decided February 11, 2009

Reported below, 57 AD3d 35.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MI-
CHAEL DENNIS, Appellant.

Submitted January 20, 2009; decided February 11, 2009

Reported below, 55 AD3d 385.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DON-
ALD FRANCE, Appellant.

Submitted November 24, 2008; decided February 11, 2009

Reported below, 50 AD3d 266.

Motion to vacate this Court's November 7, 2008 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DOUG-
LAS PAYTON, Appellant.

Submitted January 20, 2009; decided February 11, 2009

Reported below, 53 AD3d 590.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

[904 NE2d 812, 876 NYS2d 676]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TYRONE
MAYE, Appellant.

Decided February 12, 2009

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered August 9, 2007. The Appellate Division affirmed a judgment of the Warren County Court (John S. Hall, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree (two counts), criminal possession of a controlled substance in the fifth degree, criminal use of drug paraphernalia in the second degree and promoting prison contraband in the first degree.

People v Maye, 43 AD3d 556, modified.

HEADNOTE**Crimes — Unlawful Search and Seizure — Manual Body Cavity Search**

In a prosecution for criminal possession of controlled substances, defendant's motion to suppress cocaine found in a "baggie" during a manual body cavity search performed at a police station, without a warrant, was granted. The officer who carried out the search testified that he saw the "baggie" protruding from defendant's rectum and removed it. No exigent circumstances prevented the police from seeking prior judicial authorization for the search.

APPEARANCES OF COUNSEL

Matthew C. Hug, North Greenbush, for appellant.
Respondent precluded.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be modified by granting defendant's motion to suppress the cocaine recovered and remitting to County Court for further proceedings in accordance with this memorandum and, as so modified, affirmed.

Defendant seeks suppression of evidence including cocaine found in a "baggie" during a manual body cavity search performed at a police station, without a warrant. The officer who carried out the search testified that he saw the "baggie" protruding from defendant's rectum, and removed it. Since no exigent circumstances prevented the police from seeking prior

judicial authorization for the search, defendant's motion to suppress should be granted to the extent of suppressing the cocaine recovered (*see People v Hall*, 10 NY3d 303, 311 [2008]).

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum; Chief Judge LIPPMAN taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order modified, etc.

[904 NE2d 811, 876 NYS2d 675]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDREW C. SMALL, Appellant.

Argued January 14, 2009; decided February 12, 2009

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 1, 2008. The Appellate Division affirmed a judgment of the Monroe County Court (John R. Schwartz, J.), which had convicted defendant, upon a jury verdict, of criminal sale of a controlled substance in the third degree and unlawful possession of marihuana.

People v Small, 48 AD3d 1110, affirmed.

HEADNOTE

Crimes — Disclosure — Notice of Intention to Offer Evidence

County Court did not abuse its discretion in granting the People's application to present *Molineux* evidence midtrial in response to defendant's attempt to establish an agency defense. A prosecutor seeking to introduce *Molineux* evidence should ask for a ruling outside the presence of the jury, and any hearing should occur either before trial or, at the latest, just before the witness testifies. However, this inquiry or ruling need not occur before trial commences. Moreover, the court provided a proper limiting instruction.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (*William Clauss* of counsel), for appellant.

Michael C. Green, District Attorney, Rochester (*Wendy Evans Lehmann* and *Kelly Christine Wolford* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

While a defendant is not entitled as a matter of law to pretrial notice of the People's intention to offer evidence pursuant to *People v Molineux* (168 NY 264 [1901]) or to a pretrial hearing on the admissibility of such evidence (*see generally People v Ventimiglia*, 52 NY2d 350, 362 [1981]; *People v Torres*, 300 AD2d 46, 46-47 [1st Dept 2002]; *cf.* CPL 240.43), we outlined in *People v Ventimiglia* a procedure to be followed in order to avoid unfairness to the defendant. We noted that a prosecutor seeking to introduce *Molineux* evidence "should ask for a ruling out of the presence of the jury" (*Ventimiglia*, 52 NY2d at 362), and that any hearing with respect to the admissibility of such evidence should occur either before trial or, at the latest, "just before the witness testifies" (*id.*). Contrary to defendant's contention, there is no requirement that such inquiry or ruling occur before trial commences.

Here, County Court granted the People's application to allow the *Molineux* evidence midtrial in response to defendant's attempt to establish an agency defense. Moreover, the court provided a proper limiting instruction, telling the jury that the evidence was "no proof whatsoever that [defendant] possessed a propensity or disposition to commit the crime charged in the indictment" but was offered "solely for rebutting the defense of agency on the issue of intent." In these circumstances, County Court did not abuse its discretion in permitting the People to present *Molineux* evidence.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur; Chief Judge LIPPMAN taking no part.

Order affirmed in a memorandum.

In the Matter of WILLIAM COKE, Appellant, v GREEN HAVEN
CORRECTIONAL FACILITY et al., Respondents.

Submitted January 5, 2009; decided February 12, 2009

Reported below, 2008 NY Slip Op 90227(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

SIERRA FRANK, Appellant, v WILLIAM H. EATON et al., Respondents.

Submitted December 15, 2008; decided February 12, 2009

Reported below, 54 AD3d 805.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

Chief Judge LIPPMAN taking no part.

In the Matter of TOWN OF MONTAUK, Appellant, v GEORGE E. PATAKI et al., Respondents.

Submitted January 12, 2009; decided February 12, 2009

Reported below, 2007 NY Slip Op 73644(U).

Motion for reargument denied [*see* 10 NY3d 823 (2008)].

Chief Judge LIPPMAN taking no part.

JOHN NELSON, Respondent, v SHANER CABLE, INC., Doing Business as EL-MAR COMMUNICATIONS CO., Appellant.

Submitted January 5, 2009; decided February 12, 2009

Reported below, 56 AD3d 1283; 2 AD3d 1371.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RIGOBERTO BENITEZ, Appellant.

Submitted January 5, 2009; decided February 12, 2009

Reported below, 47 AD3d 824.

Motion to dismiss the appeal herein granted and appeal dismissed, without prejudice to defendant making a motion to reinstate the appeal should he return to this Court's jurisdiction (*see People v Diaz*, 7 NY3d 831 [2006]).

Chief Judge LIPPMAN taking no part.

In the Matter of JOSE RIVERA, Appellant, v LUCIEN J. LECLAIRE, JR., as Commissioner of Correctional Services, et al., Respondents.

Decided February 12, 2009

Reported below, 54 AD3d 465.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (*see* CPLR 5601).

Chief Judge LIPPMAN taking no part.

[904 NE2d 816, 876 NYS2d 680]

In the Matter of ASPEN CREEK ESTATES, LTD., Appellant, v TOWN OF BROOKHAVEN et al., Respondents.

Argued January 14, 2009; decided February 17, 2009

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from a judgment of that Court, entered December 4, 2007, in a proceeding pursuant to EDPL 207. The Appellate Division (1) confirmed a determination of respondent Town of Brookhaven, made after a public hearing, to acquire petitioner's property by condemnation, (2) denied the petition, and (3) dismissed the proceeding. The following question was certified by the Appellate Division: "Was the opinion and judgment of this court dated December 4, 2007, properly made?"

Matter of Aspen Cr. Estates, Ltd. v Town of Brookhaven, 47 AD3d 267, affirmed.

HEADNOTE

Eminent Domain — Public Use — Preservation of Farmland

The determination of respondent Town to acquire petitioner's property by condemnation was constitutionally proper even assuming that a preexisting farmland preservation plan to justify the taking within the meaning of the Fifth Amendment was necessary. Petitioner's property was taken pursuant to

a legislatively declared public policy in favor of farmland preservation and as part of the Town's master plans endorsing farmland preservation. In furtherance of the plans, Town voters passed bond acts providing money to acquire development rights or fee interests in undeveloped land. Petitioner's parcel was located within a tract of farmland in an area specifically designated for preservation. The public benefits of the taking were not incidental or pretextual in comparison with benefits to particular, favored private entities.

APPEARANCES OF COUNSEL

Ruskin Moscou Faltischek, P.C., Uniondale (*Mark S. Mulholland*, *Christine McInerney* and *Jonathan C. Sullivan* of counsel), for appellant.

Harvey B. Besunder, P.C., Islandia (*Harvey B. Besunder* and *Zachary D. Dubey* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be affirmed, with costs. The certified question should not be answered upon the ground that it is unnecessary.

Petitioner contends that the United States Supreme Court's decision in *Kelo v New London* (545 US 469 [2005]), which dealt with takings for purposes of economic development, requires a preexisting farmland preservation plan to justify the taking of its property as a public use within the meaning of the Fifth Amendment (*see* US Const Amend V ["nor shall private property be taken for public use, without just compensation"]). We need not, and do not, reach the issue whether petitioner's interpretation of *Kelo* is correct, since the challenged taking was constitutionally proper even assuming that a preexisting farmland preservation plan was necessary. Petitioner's property was taken pursuant to a legislatively-declared public policy in favor of farmland preservation and as part of the Town of Brookhaven's master plans endorsing farmland preservation. In furtherance of these plans, Town voters passed three bond acts providing \$130 million to acquire development rights or fee interests in undeveloped land in the Town; among the areas specifically designated for preservation was the 500-acre tract of farmland in which petitioner's parcel is located.

In short, the public benefits of the taking in this case were not incidental or pretextual in comparison with benefits to particular, favored private entities; petitioner's remaining arguments likewise lack merit. Finally, the parties have not argued, and we do not decide, whether the New York Constitution (*see*

NY Const, art I, § 7 [a]) imposes a more stringent standard for takings than does the Fifth Amendment as interpreted by *Kelo*.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum; Chief Judge LIPPMAN taking no part.

Judgment affirmed, etc.

[904 NE2d 499, 876 NYS2d 345]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWAYNE MIDDLETON, Appellant.

Decided February 17, 2009

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 29, 2008. The Appellate Division affirmed an order of the Supreme Court, Kings County (Michael J. Brennan, J.), which, after a hearing to redetermine the defendant's sex offender risk level pursuant to a stipulation of settlement, designated him a level three sex offender pursuant to Correction Law article 6-C.

The Appellate Division concluded that defendant was properly assessed 20 points for the number of victims, 30 points for the age of a younger victim, and 20 points for his failure to accept responsibility and sexual contact under the victim's clothing; that these 70 points, when added to the 55 points for factors defendant did not contest, gave defendant a presumptive score of 125; and that defendant was properly determined a level three sex offender.

People v Middleton, 50 AD3d 1114, affirmed.

HEADNOTE

Crimes — Sex Offenders — Sex Offender Registration Act

In a proceeding to determine defendant's sex offender risk level pursuant to Correction Law article 6-C, there was record support for the determination of the courts below that defendant was a level three sex offender. The presumptive score of 125 points included 20 points for the number of victims, 30 points for the age of a younger victim, 20 points for failure to accept responsibility and sexual contact under the victim's clothing, and an additional 55 points for factors defendant did not contest.

APPEARANCES OF COUNSEL

Legal Aid Society, Criminal Appeals Bureau, New York City (Steven J. Miraglia and Steven Banks of counsel), for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Maria Park* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed without costs.

Defendant's constitutional arguments are unpreserved. The record supports the determination of the courts below that defendant is a level three sex offender.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur; Chief Judge LIPPMAN taking no part.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, without costs, in a memorandum.

LILLIAN ARIAS, Appellant, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION (KINGS COUNTY HOSPITAL CENTER), Respondent.

Submitted December 22, 2008; decided February 17, 2009

Reported below, 50 AD3d 830 (Case No. 3).

Motion, insofar as it seeks leave to appeal from the April 2008 Appellate Division order, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal from the October 2008 Supreme Court judgment, dismissed upon the ground that it is not a final judgment within the meaning of CPLR 5602 (a) (1) (ii) to bring up for review the April 2008 Appellate Division order that finally determined a separate special proceeding (*see* Karger, Powers of the New York Court of Appeals § 5:28, at 187-188 [3d ed rev]).

In the Matter of JOHN W. BRODERICK, Appellant, v FELIX J. CATENA, as Montgomery County Court Judge, et al., Respondents.

Submitted January 5, 2009; decided February 17, 2009

Reported below, 2008 NY Slip Op 91029(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of JOHN W. BRODERICK, Appellant, v FELIX J. CATENA, as Montgomery County Court Judge, et al., Respondents.

Submitted January 5, 2009; decided February 17, 2009

Reported below, 2008 NY Slip Op 91029(U).

Motion by John Mazzaella for leave to file an affidavit amicus curiae on the motion for leave to appeal herein denied.

In the Matter of RAYMOND F. MULHAUL, Petitioner, v DEBRA H. LEVINE, Respondent. SAMANTHA MULHAUL, Nonparty Appellant.

Submitted December 29, 2008; decided February 17, 2009

Reported below, 2008 NY Slip Op 83878(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of LOUIS R. ROSENTHAL, an Attorney, Appellant. COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted January 20, 2009; decided February 17, 2009

Reported below, 57 AD3d 1085.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

CONSTANDINA M. ROUX, Appellant.

Submitted December 22, 2008; decided February 17, 2009

Motion for leave to appeal dismissed upon the ground that the paper sought to be appealed from was not issued in an action or proceeding and the Court of Appeals does not have jurisdiction to entertain the motion (*see* CPLR 5602).

[904 NE2d 832, 876 NYS2d 696]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWIGHT
FURET, Also Known as IRA MORSEBY, Appellant.

Decided February 19, 2009

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 8, 2008. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Michael R. Ambrecht, J., on CPL 190.50 motion; John Cataldo, J., at hearing, trial and sentence), which had convicted defendant, after a nonjury trial, of criminal sale of a controlled substance in the third degree and resisting arrest.

The trial court failed to inform defendant during sentencing of the mandatory surcharge, crime victim assistance fee and DNA databank fee. Defendant contended on appeal that the surcharge and fees are components of a sentence, thus requiring that their imposition be pronounced by the court at sentencing.

People v Furet, 47 AD3d 430, affirmed.

HEADNOTES**Crimes — Sentence — Mandatory Surcharge, Crime Victim Assistance and DNA Databank Fees**

1. A trial court need not pronounce at sentencing the mandatory surcharge, crime victim assistance fee and DNA databank fee.

Crimes — Unlawful Search and Seizure

2. In a criminal prosecution, the lower courts' determinations regarding reasonable suspicion and probable cause, which are mixed questions of law and fact, were supported by the record, and therefore, beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*William A. Loeb* of counsel), for appellant.

Robert M. Morgenthau, District Attorney, New York City (*Dana Poole* of counsel), for respondent.

OPINION OF THE COURT

[1, 2] On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order af-

firmed. The mandatory surcharge, crime victim assistance fee and DNA databank fee need not be pronounced by the court at sentencing (*see People v Guerrero*, 12 NY3d 45 [2009] [decided today]). The lower courts' determinations regarding reasonable suspicion and probable cause, which are mixed questions of law and fact, have support in the record and are thus beyond our further review.

Concur: Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES. Taking no part: Chief Judge LIPPMAN.

[904 NE2d 832, 876 NYS2d 696]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHRISTOPHER HARRIS, Appellant.

Decided February 19, 2009

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 27, 2007. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Rena K. Uviller, J.), which had convicted defendant, upon his plea of guilty, of grand larceny in the fourth degree.

On appeal, defendant argued that the mandatory surcharge, crime victim assistance fee and DNA databank fee, which were added to defendant's sentence and commitment sheet by the clerk of the court, constituted components of defendant's sentence, thus requiring that imposition of the fees be pronounced by the court at sentencing.

People v Harris, 46 AD3d 470, affirmed.

HEADNOTE

Crimes — Sentence — Mandatory Surcharge and Related Fees

In a criminal prosecution wherein defendant contended on appeal to the Court of Appeals that the mandatory surcharge, crime victim assistance fee and DNA databank fee constituted components of defendant's sentence, thus requiring that their imposition be pronounced by the court at sentencing, the order of the Appellate Division affirming defendant's judgment of conviction was affirmed.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*William A. Loeb* of counsel), for appellant.

Robert M. Morgenthau, District Attorney, New York City (Richard Nahas of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed (*see People v Guerrero*, 12 NY3d 45 [2009] [decided today]).

Concur: Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES. Taking no part: Chief Judge LIPPMAN.

[906 NE2d 373, 878 NYS2d 645]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BAJRO HOTI, Appellant.

Decided February 19, 2009

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 3, 2008. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Lewis Bart Stone, J.), which had convicted defendant, upon his plea of guilty, of robbery in the second degree.

The trial court failed to inform defendant prior to his guilty plea that he would be required to pay a mandatory surcharge, crime victim assistance fee and DNA databank fee. Defendant argued on appeal that the court's failure to pronounce the surcharge and fees prior to the entry of his plea rendered the plea unknowing, involuntary and unintelligent, and therefore subject to vacatur.

People v Hoti, 52 AD3d 211, affirmed.

HEADNOTE

Crimes — Sentence — Mandatory Surcharge and Related Fees

The mandatory surcharge, crime victim assistance fee and DNA databank fee are not components of a defendant's sentence. Accordingly, defendant was not deprived of the opportunity to knowingly, voluntarily and intelligently choose among alternative courses of action when the trial court failed to pronounce the surcharge and fees prior to the entry of his plea.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Mark W. Zeno of counsel*), for appellant.

Robert M. Morgenthau, District Attorney, New York City (Richard Nahas of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. The mandatory surcharge, crime victim assistance fee and DNA databank fee are not components of a defendant's sentence (*see People v Guerrero*, 12 NY3d 45 [2009] [decided today]). Accordingly, the court's failure to pronounce the surcharge and fees prior to the entry of defendant's plea did not deprive the defendant of the opportunity to knowingly, voluntarily and intelligently choose among alternative courses of action (*cf. People v Catu*, 4 NY3d 242, 245 [2005]).

Concur: Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES. Taking no part: Chief Judge LIPPMAN.

[907 NE2d 267, 879 NYS2d 354]

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v RONALD MOYE, Respondent.

Argued January 15, 2009; decided February 19, 2009

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered May 8, 2008. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (John A. K. Bradley, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree, (2) vacated the judgment, and (3) remanded the matter for a new trial.

People v Moye, 52 AD3d 1, affirmed.

HEADNOTE

Crimes — Argument and Conduct of Counsel — Prosecutor's Violation of Unsworn Witness Rule

In his summation, the prosecutor at defendant's criminal trial violated the unsworn witness rule when he vouched for a witness with the most favorable testimony for the prosecution by referencing his own pretrial conduct and credibility by virtue of his position in the District Attorney's office. An attorney may not make himself an unsworn witness by supporting his case by his own or anyone else's veracity and position. The vouching remarks could not be excused as fair response to defense provocation. Further, they were

prejudicial to defendant, and the trial court's limiting instruction failed to eliminate the prejudicial effect.

APPEARANCES OF COUNSEL

Robert M. Morgenthau, District Attorney, New York City (*Mark Dwyer* of counsel), for appellant.

Anthony L. Ricco, New York City, and *Steven Z. Legon* for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

An attorney may not "mak[e] himself an unsworn witness" by "supporting his case by his own" or anyone else's "veracity and position" (*People v Lovello*, 1 NY2d 436, 439 [1956]). While we do not fault the prosecutor for remarks made at sidebar, in his summation he concededly became an unsworn witness by "vouch[ing] for the witness with the most favorable testimony for the prosecution by reference to his own pretrial conduct and . . . credibility by virtue of his position in the District Attorney's office" (*People v Moye*, 52 AD3d 1, 8 [1st Dept 2008]). We agree with the majority below that the prosecutor's vouching remarks in summation may not be excused as fair response to defense provocation. Further, they were prejudicial to defendant, and, in this case, the trial court's limiting instruction failed to eliminate the prejudicial effect.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur; Chief Judge LIPPMAN taking no part.

Order affirmed in a memorandum.

[904 NE2d 832, 876 NYS2d 696]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LORRAINE WASHINGTON, Appellant.

Decided February 19, 2009

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 15, 2008. The Appellate Division affirmed a judgment of the Supreme

Court, New York County (Maxwell Wiley, J.), which had convicted defendant, upon her plea of guilty, of criminal sale of a controlled substance in the third degree.

Defendant contended on appeal to the Court of Appeals that the mandatory surcharge, crime victim assistance fee and DNA databank fee, which were added to defendant's sentence and commitment sheet by the clerk of the court, constituted components of defendant's sentence, thus requiring that their imposition be pronounced by the court at sentencing.

People v Washington, 51 AD3d 521, affirmed.

HEADNOTE

Crimes — Sentence — Mandatory Surcharge and Related Fees

In a criminal prosecution wherein defendant contended on appeal that the mandatory surcharge, crime victim assistance fee and DNA databank fee, which were added to defendant's sentence and commitment sheet by the clerk of the court, constituted components of defendant's sentence, thus requiring that their imposition be pronounced by the court at sentencing, the Appellate Division order affirming defendant's judgment of conviction was affirmed.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*William A. Loeb* of counsel), for appellant.

Robert M. Morgenthau, *District Attorney*, New York City (*Richard Nahas* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed (*see People v Guerrero*, 12 NY3d 45 [2009] [decided today]).

Concur: Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES. Taking no part: Chief Judge LIPPMAN.

MORRIS I. GLETZER, Also Known as MORRIS I. GLECEER, Plaintiff,
v AMOS HARRIS, Defendant.

GREENPOINT MORTGAGE FUNDING, INC., et al., Respondents, v
MORRIS I. GLETZER, Also Known as MORRIS I. GLECEER, Appellant, et al., Respondents.

Submitted February 17, 2009; decided February 19, 2009

Reported below, 51 AD3d 196.

Motion by New York State Land Title Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

Chief Judge LIPPMAN taking no part.

In the Matter of GEORGE INFANTE, as Administrator of the Estate of ROSEMARY A. INFANTE, Deceased, Respondent, v CAROLINE R. DIGNAN, M.D., as Medical Examiner of Monroe County, et al., Appellants.

Submitted February 17, 2009; decided February 19, 2009

Reported below, 55 AD3d 1258.

Motion by Most Reverend Howard J. Hubbard, D.D. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

BORIS KHRAPUNSKIY et al., Respondents, v ROBERT DOAR, as Commissioner of the New York State Office of Temporary and Disability Assistance, Appellant.

Submitted February 17, 2009; decided February 19, 2009

Reported below, 49 AD3d 201.

Motion by City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

IGOR MISICKI, Appellant, v SALVATORE CARADONNA, Defendant, and 430-50 SHORE ROAD CORPORATION, Respondent. (And a Third-Party Action.)

Submitted February 17, 2009; decided February 19, 2009

Reported below, 51 AD3d 644.

Motion by New York State Trial Lawyers' Association for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of PAOLO W. and Another, Children Alleged to be Neglected. SCHENECTADY COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; PAUL W., Appellant.

Submitted January 5, 2009; decided February 19, 2009

Reported below, 56 AD3d 966.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM L. HILTS, Also Known as T and TRUE, Appellant.

Submitted December 1, 2008; decided February 19, 2009

Reported below, 46 AD3d 947.

Motion to vacate this Court's July 14, 2008 dismissal order granted [*see* 10 NY3d 954 (2008)]. Motion for assignment of counsel granted and David Lazer, Esq., care of Lazer, Aptheker, Rosella & Yedid, P.C., Melville Law Center, 225 Old Country Road, Melville, New York 11747-2712 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SCOTT C. WEAVER, Appellant.

Submitted February 17, 2009; decided February 19, 2009

Reported below, 52 AD3d 138.

Motion by National Association of Criminal Defense Lawyers et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SCOTT C. WEAVER, Appellant.

Submitted February 17, 2009; decided February 19, 2009

Reported below, 52 AD3d 138.

Motion by New York Civil Liberties Union for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

PIONEER TOWER OWNERS ASSOCIATION, Respondent, v STATE
FARM FIRE & CASUALTY COMPANY et al., Appellants.

Submitted February 17, 2009; decided February 19, 2009

Reported below, 51 AD3d 649.

Motion by New York Insurance Association, Inc. et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

SIGURD A. SORENSON, Appellant, v BRIDGE CAPITAL CORP. et al.,
Respondents.

Submitted December 22, 2008; decided February 19, 2009

Reported below, 52 AD3d 265.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge LIPPMAN taking no part.

In the Matter of SUSAN H. WILEY, Respondent, v ROGER DAW-
SON, Appellant.

Submitted December 1, 2008; decided February 19, 2009

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief etc. dismissed as academic. Cross motion for the imposition of sanctions denied.

[904 NE2d 837, 876 NYS2d 700]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v KRIS-
TERFER PASSINO, Appellant.

Decided February 24, 2009

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Third Judicial Department, from

an order of that Court, entered July 3, 2008. The Appellate Division affirmed a judgment of the Washington County Court (Stanley L. Pritzker, J.), which had convicted defendant, upon his plea of guilty, of placing a false bomb or hazardous substance in the second degree.

Defendant inmate argued on appeal to the Court of Appeals that his interrogation by a law enforcement officer in a correctional facility visiting room was custodial so as to require *Miranda* warnings; that the circumstances under which a defendant inmate is summoned for interrogation play a role in determining whether that defendant is entitled to *Miranda* warnings; and that the prosecution bears the burden on the issue of custody.

People v Passino, 53 AD3d 204, affirmed.

HEADNOTE

Appeal — Preservation of Issue for Review

The issues raised on defendant's appeal to the Court of Appeals were not preserved for review where defendant did not raise any issue under *Miranda v Arizona* (384 US 436 [1966]) at County Court, and that court's ruling on the *Miranda* issue did not address any of the arguments defendant made on the appeal.

APPEARANCES OF COUNSEL

Jones Ferradino, Saratoga Springs (*M. Elizabeth Coreno* of counsel), and *Alfred O'Connor*, Albany, for appellant.

Kevin C. Kortright, District Attorney, Fort Edward (*Michael R. Stern* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed. The issues raised on appeal were not preserved for this Court's review. Defendant did not raise any issue under *Miranda v Arizona* (384 US 436 [1966]) at County Court, and that court's ruling on the *Miranda* issue did not address any of the arguments defendant now makes.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

CAROLYN CHARLEY, Appellant, v MARGARET E. GOSS et al.,
Respondents.

Decided February 24, 2009

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered September 2, 2008. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Deborah A. Kaplan, J.; op 2007 NY Slip Op 31530[U]), which had granted a motion by two of the defendants for summary judgment dismissing the complaint as against them.

Plaintiff commenced a personal injury action to recover damages for injuries allegedly sustained in an automobile accident. The Supreme Court granted the moving defendants' motion for summary judgment on the ground that plaintiff failed to meet the serious injury threshold.

Charley v Goss, 54 AD3d 569, affirmed.

HEADNOTE

Insurance — No-Fault Automobile Insurance — Serious Injury

In a negligence action to recover damages for injuries allegedly sustained in a motor vehicle accident, the trial court properly granted defendants summary judgment. Defendants presented prima facie evidence, including plaintiff's deposition testimony and medical records, that plaintiff did not suffer a serious injury within the meaning of Insurance Law § 5102 (d). In opposition, plaintiff failed to raise a triable issue of fact.

APPEARANCES OF COUNSEL

Kahn Gordon Timko & Rodriques P.C., New York City (*Thomas B. Grunfeld* of counsel), for appellant.

Law Offices of Brian J. McGovern LLC, New York City (*Alison M.K. Lee* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs.

Defendants Howard Conroy and Margaret Goss presented prima facie evidence, including plaintiff's deposition testimony and medical records, that plaintiff did not suffer a serious injury within the meaning of Insurance Law § 5102 (d) (*see Toure v*

Avis Rent A Car Sys., 98 NY2d 345 [2002]). In opposition, plaintiff failed to raise a triable issue of fact.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

[908 NE2d 868, 880 NYS2d 878]

LINDA SMALLEY, Appellant, v MATTHEW J. BEMBEN, Respondent.

Decided February 24, 2009

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered April 25, 2008. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Erie County (Gerald J. Whalen, J.), which had denied defendant's motion pursuant to CPLR 3211 (a) (7) to dismiss the complaint, (2) granted the motion, and (3) dismissed the complaint.

Plaintiff commenced a personal injury action to recover damages for injuries sustained when she slipped and fell on snow or ice on the sidewalk abutting defendant's property and asserted that defendant was liable pursuant to section 413-50 (A) of the Code of the City of Buffalo. The Appellate Division concluded that section 413-50 (A) did not impose liability upon defendant for the failure to "keep [the] sidewalk . . . free and clear of and from snow, ice and all other obstructions."

Smalley v Bemben, 50 AD3d 1470, affirmed.

HEADNOTE

Negligence — Snow and Ice — Violation of Statutory Duty

Defendant landowner was not liable to plaintiff for injuries she sustained when she slipped and fell on snow or ice on the public sidewalk abutting defendant's property. Unless a statute or ordinance clearly imposes liability upon an abutting landowner, only a municipality may be held liable for the negligent failure to remove snow and ice from a public sidewalk. Buffalo City Code § 413-50 (A), which mandates that landowners remove snow and ice on abutting sidewalks before 9:00 A.M. and make, maintain and repair abutting sidewalks, only imposes liability with respect to the latter duty. While the legislative history of the Code section may be read to indicate that it was

intended to impose liability for negligent failure to remove snow and ice from a public sidewalk, the terms of the Code do not clearly subject landowners to such liability.

APPEARANCES OF COUNSEL

Law Offices of Michael G. Dwyer, PLLC, Williamsville (*Michael G. Dwyer* of counsel), for appellant.

Barth Sullivan Behr, Buffalo (*Laurence D. Behr* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Unless a statute or ordinance “*clearly imposes liability* upon” an abutting landowner, only a municipality may be held liable for the negligent failure to remove snow and ice from a public sidewalk (*Roark v Hunting*, 24 NY2d 470, 475 [1969] [emphasis added]; *Jacobs v Pasquale*, 281 AD2d 891, 892 [4th Dept 2001]). In 1997, the City of Buffalo amended section 413-50 (A) of its City Code to impose two duties on landowners: (1) removing snow and ice on abutting sidewalks before 9:00 A.M. and (2) making, maintaining and repairing abutting sidewalks. The plain language of section 413-50 (A) only imposes liability with respect to the second duty. While the legislative history of the 1997 amendment may also be read as indicating that the amendment was intended to impose liability on landowners for failing to remove snow and ice from city sidewalks abutting their property (see *Montes v City of Buffalo*, 295 AD2d 896, 897 [4th Dept 2002], *lv denied* 99 NY2d 504 [2002]), the terms of the Code do not clearly subject landowners to such liability.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

CHARLES DeMARTINO, Appellant, v METROPOLITAN LIFE INSURANCE COMPANY et al., Respondents.

Submitted January 12, 2009; decided February 24, 2009

Reported below, 2008 NY Slip Op 89287(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion to seal denied as unnecessary (*see* Rules of Ct of Appeals [22 NYCRR] § 500.5 [b]).

Chief Judge LIPPMAN taking no part.

In the Matter of GENERAL ELECTRIC COMPANY, Appellant, v ASSESSOR OF THE TOWN OF ROTTERDAM et al., Respondents.
(And Another Related Proceeding.)

Submitted January 12, 2009; decided February 24, 2009

Reported below, 54 AD3d 469.

Motion for reargument of motion for leave to appeal denied [*see* 11 NY3d 711 (2008)].

Chief Judge LIPPMAN and Judge READ taking no part.

In the Matter of GENERAL ELECTRIC COMPANY, Appellant, v ASSESSOR OF THE TOWN OF ROTTERDAM et al., Respondents.
(And Another Related Proceeding.)

Submitted January 12, 2009; decided February 24, 2009

Reported below, 54 AD3d 469.

Motion by the Institute for Professionals in Taxation for leave to file a brief amicus curiae on the motion for reargument herein granted and the brief is accepted as filed [*see* 11 NY3d 711 (2008)].

Chief Judge LIPPMAN and Judge READ taking no part.

In the Matter of GENERAL ELECTRIC COMPANY, Appellant, v ASSESSOR OF THE TOWN OF ROTTERDAM et al., Respondents.
(And Another Related Proceeding.)

Submitted January 12, 2009; decided February 24, 2009

Reported below, 54 AD3d 469.

Motion by the Council on State Taxation for leave to file a brief amicus curiae on the motion for reargument herein

granted and the brief is accepted as filed [*see* 11 NY3d 711 (2008)].

Chief Judge LIPPMAN and Judge READ taking no part.

In the Matter of PETER C. IRVINE, Appellant, v KATHLEEN M. ROGERS, as Acting Judge of St. Lawrence County Court, et al., Respondents.

Decided February 24, 2009

Reported below, 2008 NY Slip Op 91006(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of EDWARD KOEHL, Appellant, v DALE ARTUS, as Superintendent of Clinton Correctional Facility, Respondent.

Submitted January 12, 2009; decided February 24, 2009

Reported below, 56 AD3d 918.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of ELVIN LEBRON, Appellant, v BRION D. TRAVIS, as Chair of the New York State Division of Parole, Respondent.

Submitted January 12, 2009; decided February 24, 2009

Reported below, 56 AD3d 1090.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of RSM WEST LAKE ROAD LLC et al., Respondents,
v TOWN OF CANANDAIGUA ZONING BOARD OF APPEALS et al.,
Respondents, and EAST SHORE ASSOCIATION OF CANAN-
DAIGUA LAKE, INC., et al., Appellants.

Submitted December 22, 2008; decided February 24, 2009

Reported below, 55 AD3d 1222.

Motion to dismiss the appeal herein denied.

SNYDER FULTON STREET, LLC, Respondent, v FULTON INTEREST,
LLC, Appellant.

Submitted January 12, 2009; decided February 24, 2009

Reported below, 57 AD3d 511.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution (*see* Karger,
Powers of the New York Court of Appeals § 5:3, at 109 [3d ed
rev]). Motion for a stay dismissed as academic.

APPEALS WITHDRAWN AND DISCONTINUED

(February 1, 2009 through February 28, 2009)

Patten v Hamburg OB/GYN
Group, P.C.

4th Dept: 50 AD3d 1624

2/6/09

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2009 through February 28, 2009)

People v Allah	1st Dept: 54 AD3d 632 (Bronx)	denied 2/27/09 (Pigott, J.)
People v Allen	4th Dept: 56 AD3d 1181 (Monroe)	denied 2/20/09 (Read, J.)
People v Alvarez	2d Dept: 57 AD3d 688 (Nassau)	denied 2/25/09 (Grafteo, J.)
People v Avilez	4th Dept: 56 AD3d 1176 (Monroe)	denied 2/19/09 (Read, J.)
People v Ball	4th Dept: 57 AD3d 1444 (Monroe)	denied 2/26/09 (Grafteo, J.)

People v Bates	App Term, 2d Dept: 22 Misc 3d 16 (Nassau)	denied 2/25/09 (Grafteo, J.)
People v Batts	1st Dept: 57 AD3d 230 (NY)	denied 2/3/09 (Read, J.)
People v Beard	1st Dept: 56 AD3d 321 (NY)	denied 2/27/09 (Pigott, J.)
People v Bergman	4th Dept: 56 AD3d 1225 (Oswego)	denied 2/2/09 (Pigott, J.)
People v Best	1st Dept: 57 AD3d 279 (NY)	denied 2/18/09 (Read, J.)
People v Billy	2d Dept: 56 AD3d 486 (Kings)	denied 2/20/09 (Read, J.)
People v Black	1st Dept: 55 AD3d 422 (NY)	denied 2/5/09 (Ciparick, J.)
People v Blair	App Div, 4th Dept, 12/22/08 (Wayne)	dismissed 2/24/09 (Pigott, J.)
People v Bossett	2d Dept: 56 AD3d 681 (Queens)	denied 2/27/09 (Pigott, J.)
People v Bradley	App Div, 4th Dept, 1/12/09 (Monroe)	dismissed 2/13/09 (Jones, J.)
People v Braithwaite	2d Dept: 57 AD3d 913 (Kings)	dismissed 2/20/09 (Jones, J.)
People v Brightley	1st Dept: 56 AD3d 314 (NY)	denied 2/27/09 (Pigott, J.)
People v Brown (Carlton)	2d Dept: 55 AD3d 920 (Kings)	denied 2/4/09 (Pigott, J.)
People v Brown (Edward)	2d Dept: 55 AD3d 920 (Kings)	denied 2/6/09 (Ciparick, J.)
People v Brown (Richard)	2d Dept: 57 AD3d 691 (Queens)	denied 2/19/09 (Read, J.)
People v Bryan	2d Dept: 55 AD3d 921 (Kings)	denied 2/23/09 (Smith, J.)
People v Buckman	4th Dept: 55 AD3d 1361 (Livingston)	denied 2/3/09 (Read, J.)
People v Burns	App Div, 1st Dept: 2008 NY Slip Op 91364(U) (NY)	denied 2/18/09 (Read, J.)
People v Burroughs	4th Dept: 57 AD3d 1459 (Onondaga)	denied 2/26/09 (Grafteo, J.)
People v Burwell	1st Dept: 56 AD3d 304 (NY)	denied 2/4/09 (Pigott, J.)
People v Bush	3d Dept: 57 AD3d 1119 (Madison)	denied 2/4/09 (Smith, J.)
People v Cabral	1st Dept: 55 AD3d 399 (NY)	denied 2/5/09 (Ciparick, J.)
People v Camacho	2d Dept: 56 AD3d 794 (Kings)	denied 2/4/09 (Pigott, J.)
People v Campbell	2d Dept: 54 AD3d 959 (Kings)	denied 2/5/09 (Ciparick, J.)

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People v Cano	2d Dept: 54 AD3d 684 (Orange)	granted 2/4/09 (Ciparick, J.)
People v Chambers	2d Dept: 57 AD3d 913 (Suffolk)	denied 2/27/09 (Smith, J.)
People v Charles	2d Dept: 57 AD3d 556 (Kings)	denied 2/25/09 (Grafteo, J.)
People v Christie	1st Dept: 55 AD3d 341 (Bronx)	denied 2/6/09 (Ciparick, J.)
People v Cooke	2d Dept: 55 AD3d 847 (Queens)	denied 2/6/09 (Ciparick, J.)
People v Craft	4th Dept: 57 AD3d 1388 (Niagara)	denied 2/27/09 (Smith, J.)
People v Crawson	3d Dept: 56 AD3d 1051 (Broome)	denied 2/4/09 (Smith, J.)
People v Crisler	App Div, 4th Dept, 11/27/08 (Monroe)	dismissed 2/18/09 (Read, J.)
People v Cromer	1st Dept: 57 AD3d 245 (NY)	denied 2/23/09 (Smith, J.)
People v Cruz	2d Dept: 55 AD3d 848 (Queens)	denied 2/6/09 (Ciparick, J.)
People v Curry	2d Dept: 56 AD3d 489 (Suffolk)	denied 2/20/09 (Read, J.)
People v Dan	3d Dept: 55 AD3d 1042 (Albany)	denied 2/19/09 (Read, J.)
People v Davis (Clifton)	2d Dept: 56 AD3d 571 (Kings)	denied 2/20/09 (Read, J.)
People v Davis (Tiquan)	2d Dept: 55 AD3d 922 (Kings)	denied 2/19/09 (Read, J.)
People v Denno	3d Dept: 56 AD3d 902 (Essex)	denied 2/25/09 (Grafteo, J.)
People v Diggs	2d Dept: 56 AD3d 795 (Kings)	denied 2/24/09 (Pigott, J.)
People v Dolan	3d Dept: 51 AD3d 1337 (Albany)	denied 2/3/09 (Smith, J.)
People v Duran	1st Dept: 55 AD3d 348 (NY)	denied 2/5/09 (Ciparick, J.)
People v Ehlers	County Ct, 6/9/08 (Rensselaer)	denied 2/23/09 (Smith, J.)
People v Fagan	4th Dept: 56 AD3d 1153 (Erie)	denied 2/2/09 (Pigott, J.)
People v Ferro	App Term, 2d Dept: 22 Misc 3d 7 (Suffolk)	denied 2/2/09 (Pigott, J.)
People v Flores	App Term, 2d Dept: 21 Misc 3d 141(A) (Kings)	denied 2/24/09 (Pigott, J.)
People v Garcia (Hector)	1st Dept: 55 AD3d 368 (NY)	denied 2/2/09 (Pigott, J.)
People v Garcia (Jose)	App Div, 2d Dept: 2008 NY Slip Op 75709(U) (Orange)	dismissed 2/5/09 (Jones, J.)

People v Gee	4th Dept: 56 AD3d 1205 (Monroe)	denied 2/25/09 (Grafteo, J.)
People v Gibeau	4th Dept: 55 AD3d 1303 (Jefferson)	denied 2/5/09 (Jones, J.)
People v Gillyard	1st Dept: 55 AD3d 310 (NY)	granted 2/6/09 (Smith, J.)
People v Glover	1st Dept: 57 AD3d 234 (NY)	denied 2/26/09 (Grafteo, J.)
People v Gonzalez (Julio)	2d Dept: 57 AD3d 560 (Kings)	denied 2/26/09 (Grafteo, J.)
People v Gonzalez (Leonard)	4th Dept: 57 AD3d 1477 (Erie)	denied reconsideration 2/19/09 (Read, J.)
People v Grant	2d Dept: 54 AD3d 967 (Westchester)	denied 2/5/09 (Ciparick, J.)
People v Green	2d Dept: 56 AD3d 490 (Kings)	denied 2/2/09 (Pigott, J.)
People v Gumbs	1st Dept: 56 AD3d 345 (NY)	denied 2/27/09 (Grafteo, J.)
People v Guzman	1st Dept: 56 AD3d 399 (Bronx)	denied 2/24/09 (Smith, J.)
People v Hanner	App Term, 2d Dept: 21 Misc 3d 134(A) (Westchester)	denied 2/25/09 (Grafteo, J.)
People v Harris	App Div, 1st Dept: 2008 NY Slip Op 93194(U) (NY)	denied 2/27/09 (Grafteo, J.)
People v Hayes	App Term, 1st Dept: 21 Misc 3d 131(A) (NY)	denied 2/6/09 (Ciparick, J.)
People v Haynesworth	1st Dept: 57 AD3d 221 (NY)	denied 2/4/09 (Pigott, J.)
People v Hennings	4th Dept: 55 AD3d 1393 (Erie)	denied 2/20/09 (Pigott, J.)
People v Henry	2d Dept: 56 AD3d 573 (Kings)	denied 2/23/09 (Smith, J.)
People v Hicks	3d Dept: 55 AD3d 1138 (Clinton)	denied 2/6/09 (Ciparick, J.)
People v Holmes	2d Dept: 55 AD3d 929 (Kings)	denied 2/2/09 (Pigott, J.)
People v Horning	4th Dept: 56 AD3d 1209 (Wayne)	denied 2/6/09 (Ciparick, J.)
People v Howze	1st Dept: 57 AD3d 220 (NY)	denied 2/27/09 (Pigott, J.)
People v Hyson	3d Dept: 56 AD3d 890 (Albany)	denied 2/20/09 (Read, J.)
People v Isidore	4th Dept: 56 AD3d 1229 (Monroe)	denied 2/3/09 (Smith, J.)
People v Jackson	App Div, 1st Dept: 2008 NY Slip Op 90100(U) (NY)	dismissed 2/5/09 (Smith, J.)
People v Jacobs	App Div, 3d Dept: 2008 NY Slip Op 91931(U) (Ulster)	denied 2/26/09 (Smith, J.)

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People v Jeffries	4th Dept: 56 AD3d 1166 (Monroe)	denied 2/13/09 (Jones, J.)
People v Jenkins	App Div, 1st Dept: 2008 NY Slip Op 88368(U) (NY)	denied reconsideration 2/26/09 (Grafteo, J.)
People v Jiminez	App Div, 3d Dept: 2008 NY Slip Op 90964(U) (Schenectady)	denied 2/5/09 (Smith, J.)
People v Johnson (Allen)	1st Dept: 56 AD3d 268 (NY)	denied 2/6/09 (Ciparick, J.)
People v Johnson (Andre)	1st Dept: 54 AD3d 636 (Bronx)	Denied 2/6/09 (Ciparick, J.)
People v Johnson (Phillip)	4th Dept: 55 AD3d 1419 (Monroe)	denied 2/6/09 (Ciparick, J.)
People v Johnson (Phillip)	App Div, 4th Dept: 2008 NY Slip Op 88601(U) (Erie)	denied 2/6/09 (Ciparick, J.)
People v Jones	App Div, 3d Dept: 2008 NY Slip Op 88538(U) (Albany)	denied 2/19/09 (Read, J.)
People v Kelly	2d Dept: 54 AD3d 971 (Kings)	denied 2/6/09 (Ciparick, J.)
People v Kent	4th Dept: 56 AD3d 1202 (Niagara)	denied 2/19/09 (Read, J.)
People v Khatib	App Div, 2d Dept: 2008 NY Slip Op 92675(U) (Kings)	dismissed 2/23/09 (Smith, J.)
People v Kohn	App Div, 2d Dept: 2008 NY Slip Op 92677(U) (Orange)	dismissed 2/17/09 (Ciparick, J.)
People v Konstantinides	2d Dept: 55 AD3d 752 (Queens)	granted 2/27/09 (Smith, J.)
People v Lanfranco	1st Dept: 57 AD3d 297 (NY)	denied 2/27/09 (Smith, J.)
People v LanFranco	1st Dept: 57 AD3d 297 (NY)	denied 2/27/09 (Smith, J.)
People v Larrea	App Div, 1st Dept: 2008 NY Slip Op 86116(U) (NY)	dismissed 2/18/09 (Read, J.)
People v Lashley	2d Dept: 58 AD3d 753 (Queens)	dismissed 2/20/09 (Ciparick, J.)
People v Lawrence	App Term, 2d Dept: 21 Misc 3d 140(A) (Dutchess)	denied 2/2/09 (Pigott, J.)
People v Lee	4th Dept: 55 AD3d 1418 (Monroe)	denied reconsideration 2/26/09 (Smith, J.)
People v Lewis (Michael)	App Div, 2d Dept: 2008 NY Slip Op 83634(U) (Orange)	denied reconsideration 2/20/09 (Ciparick, J.)
People v Lewis (Samuel)	1st Dept: 56 AD3d 345 (Bronx)	denied 2/18/09 (Read, J.)

People v Lightner	4th Dept: 56 AD3d 1274 (Erie)	dismissed 2/4/09 (Smith, J.)
People v Linton	1st Dept: 55 AD3d 324 (NY)	denied 2/5/09 (Ciparick, J.)
People v Lloyd	1st Dept: 45 AD3d 490 (Bronx)	denied 2/27/09 (Smith, J.)
People v Lofton	1st Dept: 56 AD3d 371 (NY)	denied 2/13/09 (Jones, J.)
People v Long	2d Dept: 56 AD3d 685 (Kings)	denied 2/25/09 (Grafteo, J.)
People v Lott	4th Dept: 55 AD3d 1274 (Erie)	denied reconsideration 2/26/09 (Grafteo, J.)
People v Lynah	1st Dept: 56 AD3d 375 (NY)	denied 2/27/09 (Pigott, J.)
People v Manrique	1st Dept: 57 AD3d 265 (NY)	denied 2/25/09 (Grafteo, J.)
People v Marquez	1st Dept: 55 AD3d 412 (Bronx)	denied 2/6/09 (Pigott, J.)
People v Martin	4th Dept: 57 AD3d 1471 (Erie)	denied 2/27/09 (Smith, J.)
People v Martinez (Angel)	2d Dept: 56 AD3d 800 (Orange)	denied 2/25/09 (Grafteo, J.)
People v Martinez (Lorenzo)	1st Dept: 58 AD3d 420 (NY)	dismissed 2/26/09 (Smith, J.)
People v Maxwell	4th Dept: 55 AD3d 1411 (Erie)	denied 2/3/09 (Smith, J.)
People v McChriston	1st Dept: 56 AD3d 397 (NY)	denied 2/18/09 (Read, J.)
People v McCray	1st Dept: 56 AD3d 359 (NY)	denied 2/24/09 (Pigott, J.)
People v McCullough	4th Dept: 56 AD3d 1248 (Onondaga)	denied 2/6/09 (Ciparick, J.)
People v McKanney	3d Dept: 56 AD3d 1049 (Chemung)	denied 2/25/09 (Grafteo, J.)
People v McQueen	3d Dept: 57 AD3d 1103 (Albany)	denied 2/24/09 (Smith, J.)
People v Mendez	1st Dept: 57 AD3d 248 (NY)	denied 2/25/09 (Grafteo, J.)
People v Mercado	1st Dept: 57 AD3d 302 (NY)	denied 2/27/09 (Pigott, J.)
People v Mercure	2d Dept: 47 AD3d 950 (Kings)	denied 2/13/09 (Jones, J.)
People v Mitchell	3d Dept: 57 AD3d 1232 (Chemung)	denied 2/26/09 (Grafteo, J.)
People v Montanez	1st Dept: 55 AD3d 372 (NY)	granted 2/4/09 (Read, J.)

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People v Morgan	2d Dept: 44 AD3d 797 (Orange)	denied reconsideration 2/3/09 (Smith, J.)
People v Morrishaw	3d Dept: 56 AD3d 895 (Schenectady)	denied 2/24/09 (Smith, J.)
People v Morton	3d Dept: 56 AD3d 1054 (Schenectady)	denied 2/13/09 (Jones, J.)
People v Muller	3d Dept: 57 AD3d 1113 (Schenectady)	denied 2/25/09 (Grafteo, J.)
People v Murad	2d Dept: 55 AD3d 754 (Nassau)	denied 2/6/09 (Ciparick, J.)
People v Mustafa	1st Dept: 55 AD3d 367 (NY)	denied 2/2/09 (Pigott, J.)
People v Neal	4th Dept: 56 AD3d 1211 (Cattaraugus)	denied 2/3/09 (Smith, J.)
People v Nelson	3d Dept: 56 AD3d 899 (Washington)	denied 2/6/09 (Ciparick, J.)
People v Ogborn	3d Dept: 55 AD3d 1054 (Delaware)	denied 2/5/09 (Ciparick, J.)
People v Pacheco	App Div, 1st Dept: 2008 NY Slip Op 89586(U) (NY)	dismissed 2/3/09 (Smith, J.)
People v Pauling	1st Dept: 57 AD3d 318 (NY)	denied 2/24/09 (Smith, J.)
People v Pedraza	1st Dept: 56 AD3d 390 (Bronx)	denied 2/26/09 (Smith, J.)
People v Perkins	App Div, 3d Dept: 2008 NY Slip Op 91933(U) (Schenectady)	dismissed 2/18/09 (Read, J.)
People v Phillips	4th Dept: 56 AD3d 1163 (Chautauqua)	denied 2/3/09 (Smith, J.)
People v Pierotti	2d Dept: 56 AD3d 494 (Nassau)	denied 2/4/09 (Pigott, J.)
People v Pinto	2d Dept: 56 AD3d 494 (Kings)	denied 2/2/09 (Pigott, J.)
People v Prim	4th Dept: 56 AD3d 1206 (Erie)	denied 2/6/09 (Ciparick, J.)
People v Quadrozzi	2d Dept: 55 AD3d 93 (Kings)	denied 2/3/09 (Read, J.)
People v Ramos	4th Dept: 56 AD3d 1180 (Erie)	denied 2/5/09 (Smith, J.)
People v Recore	4th Dept: 56 AD3d 1233 (Oneida)	denied 2/24/09 (Pigott, J.)
People v Renato	1st Dept: 55 AD3d 399 (NY)	denied 2/5/09 (Ciparick, J.)
People v Richline	1st Dept: 56 AD3d 341 (NY)	denied 2/20/09 (Read, J.)
People v Richmond	County Ct, 11/24/08 (Genesee)	denied 2/19/09 (Read, J.)
People v Rivera	1st Dept: 56 AD3d 291 (Bronx)	denied 2/24/09 (Pigott, J.)

People v Robinson (Elijah)	4th Dept: 56 AD3d 1281 (Erie)	denied 2/25/09 (Grafteo, J.)
People v Robinson (Todd)	2d Dept: 55 AD3d 636 (Richmond)	denied 2/2/09 (Pigott, J.)
People v Rodriguez (Edward)	2d Dept: 57 AD3d 696 (Kings)	denied 2/26/09 (Grafteo, J.)
People v Rodriguez (Orlando)	1st Dept: 56 AD3d 342 (NY)	denied 2/6/09 (Smith, J.)
People v Rodriguez (Roberto)	1st Dept: 55 AD3d 351 (NY)	denied 2/5/09 (Jones, J.)
People v Rosa	3d Dept: 57 AD3d 1018 (Ulster)	denied 2/2/09 (Pigott, J.)
People v Rosado	App Div, 4th Dept, 12/23/08 (Oneida)	dismissed 2/20/09 (Read, J.)
People v Ross	1st Dept: 56 AD3d 380 (NY)	denied 2/18/09 (Read, J.)
People v Russell	App Div, 3d Dept: 2008 NY Slip Op 89054(U) (St. Lawrence)	dismissed 2/5/09 (Jones, J.)
People v Samandarov	2d Dept: 56 AD3d 575 (Queens)	granted 2/2/09 (Pigott, J.)
People v Sanchez (Andres)	App Div, 2d Dept: 2008 NY Slip Op 92320(U) (Orange)	dismissed 2/27/09 (Pigott, J.)
People v Sanchez (Matthew)	1st Dept: 57 AD3d 1 (NY)	granted 2/3/09 (Smith, J.)
People v Santana	4th Dept: 55 AD3d 1338 (Onondaga)	denied 2/24/09 (Pigott, J.)
People v Scarlett	2d Dept: 56 AD3d 576 (Queens)	denied 2/2/09 (Pigott, J.)
People v Selman	2d Dept: 55 AD3d 638 (Kings)	denied 2/5/09 (Ciparick, J.)
People v Shackelford	2d Dept: 57 AD3d 578 (Rockland)	denied 2/19/09 (Read, J.)
People v Sims	3d Dept: 57 AD3d 1106 (Albany)	denied 2/19/09 (Read, J.)
People v Singh	2d Dept: 54 AD3d 782 (Queens)	denied 2/19/09 (Read, J.)
People v Singleton	1st Dept: 56 AD3d 396 (Bronx)	denied 2/3/09 (Smith, J.)
People v Smith	2d Dept: 57 AD3d 579 (Kings)	denied 2/19/09 (Read, J.)
People v Sostre	1st Dept: 55 AD3d 471 (Bronx)	denied 2/5/09 (Ciparick, J.)
People v Sunter	1st Dept: 57 AD3d 226 (NY)	denied 2/26/09 (Smith, J.)
People v Tambadou	3d Dept: 56 AD3d 953 (Broome)	denied 2/25/09 (Grafteo, J.)
People v Tavaréz	2d Dept: 55 AD3d 932 (Kings)	denied 2/6/09 (Ciparick, J.)

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People v Taylor	2d Dept: 55 AD3d 640 (Nassau)	granted 2/26/09 (Pigott, J.)
People v Thomas (Cloverious)	4th Dept: 56 AD3d 1233 (Monroe)	denied 2/18/09 (Read, J.)
People v Thomas (Marshon)	4th Dept: 56 AD3d 1240 (Onondaga)	denied 2/13/09 (Jones, J.)
People v Thompson	2d Dept: 56 AD3d 577 (Queens)	denied 2/19/09 (Read, J.)
People v Torres	2d Dept: 55 AD3d 933 (Kings)	denied 2/13/09 (Jones, J.)
People v Townsend	App Term, 1st Dept: 21 Misc 3d 132(A) (NY)	denied 2/13/09 (Jones, J.)
People v Trinidad	1st Dept: 57 AD3d 219 (NY)	denied 2/25/09 (Grafteo, J.)
People v Tucker	2d Dept: 54 AD3d 1065 (Queens)	denied 2/5/09 (Ciparick, J.)
People v Turner	App Div, 4th Dept, 11/21/08 (Erie)	dismissed 2/4/09 (Smith, J.)
People v Vanbrook	2d Dept: 56 AD3d 805 (Richmond)	denied 2/27/09 (Pigott, J.)
People v Vartholomeou	App Term, 2d Dept: 21 Misc 3d 134(A) (Nassau)	denied 2/3/09 (Smith, J.)
People v Vega	2d Dept: 56 AD3d 578 (Queens)	denied 2/4/09 (Smith, J.)
People v Villa	4th Dept: 56 AD3d 1242 (Erie)	denied 2/2/09 (Pigott, J.)
People v Visich	2d Dept: 57 AD3d 804 (Rockland)	denied 2/25/09 (Grafteo, J.)
People v Wall	1st Dept: 56 AD3d 361 (NY)	denied 2/24/09 (Smith, J.)
People v Waterman	1st Dept: 56 AD3d 329 (NY)	denied 2/18/09 (Read, J.)
People v Watson	2d Dept: 55 AD3d 934 (Westchester)	denied 2/13/09 (Jones, J.)
People v Watts	2d Dept: 58 AD3d 648 (Kings)	dismissed 2/27/09 (Pigott, J.)
People v Webb	1st Dept: 55 AD3d 318 (NY)	denied 2/5/09 (Jones, J.)
People v Weis	3d Dept: 56 AD3d 900 (Schenectady)	denied 2/13/09 (Jones, J.)
People v Williams (Crystel)	2d Dept: 56 AD3d 698 (Dutchess)	denied 2/19/09 (Read, J.)
People v Williams (Leshawn)	2d Dept: 56 AD3d 700 (Kings)	denied 2/19/09 (Read, J.)
People v Wilson	4th Dept: 56 AD3d 1266 (Yates)	denied 2/27/09 (Grafteo, J.)
People v Zglinicki	4th Dept: 57 AD3d 1522 (Erie)	denied 2/25/09 (Grafteo, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(February 1, 2009 through February 28, 2009)

People v Backus

4th Dept: 56 AD3d 1119 (Onondaga)

granted 2/6/09
(Centra, J.)

[907 NE2d 683, 879 NYS2d 805]**JANE DOE et al., Respondents, v ROMAN CATHOLIC DIOCESE OF
ROCHESTER et al., Appellants.**

Argued February 12, 2009; decided March 26, 2009

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered May 2, 2008. The Appellate Division order, insofar as appealed from, modified, on the law, an order of the Supreme Court, Monroe County (Stephen K. Lindley, J.), which had granted defendants' motions to dismiss the complaint. The modification consisted of (1) denying the motion of defendant Peter M. DeBellis, in part, and reinstating plaintiff Jane Doe's breach of fiduciary duty cause of action against him, and (2) denying the motion of defendants Roman Catholic Diocese of Rochester and Bishop Matthew H. Clark, in part, and reinstating Jane Doe's negligent retention and supervision claims against defendant Diocese. The following question was certified by the Appellate Division: "Was the order of this Court, entered May 2, 2008, properly made?"

Doe v Roman Catholic Diocese of Rochester, 51 AD3d 1392, reversed.

HEADNOTES**Torts — Breach of Fiduciary Duty — Adulterous Relationship with Priest**

1. Plaintiffs failed to state a breach of fiduciary duty claim against defendant priest based upon his adulterous relationship with plaintiff wife which had developed during the course of counseling services. A fiduciary relationship must exhibit the characteristics of de facto control and dominance. In order to demonstrate the existence of a fiduciary duty between a cleric and a congregant involved in a formal counseling relationship, a congregant must set forth facts and circumstances in the complaint demonstrating that the

* Includes only applications that were granted.

congregant became uniquely vulnerable and incapable of self-protection. The bare allegation that plaintiff wife was “a vulnerable congregant” was insufficient to establish that she was particularly susceptible to the priest’s influence. Nor did the complaint provide any other allegations to show that the parties had a relationship characterized by control and dominance.

Negligence — Negligent Supervision — Claim against Diocese

2. In an action arising out of an adulterous relationship between plaintiff wife and a priest, plaintiffs’ claims for negligent supervision and retention against defendant Diocese were dismissed.

APPEARANCES OF COUNSEL

Harris Beach PLLC, Pittsford (*Philip G. Spellane*, *A. Vincent Buzard* and *Laura W. Smalley* of counsel), for Bishop Matthew H. Clark and another, appellants.

Christopher S. Ciaccio, Rochester, for Peter M. DeBellis, appellant.

Christina A. Agola, *Attorneys and Counselors at Law, PLLC*, Rochester (*Christina A. Agola* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, defendants’ motions to dismiss the complaint in the entirety should be granted and the certified question should be answered in the negative.

Plaintiffs were congregants of Our Mother of Sorrows Church, where defendant Father Peter DeBellis was a priest. Plaintiff Jane Doe alleges that in November 2000, she began counseling with Father DeBellis. Soon thereafter, plaintiff maintains that they began a sexual relationship that lasted for more than three years. Both the counseling and the sexual relationship continued despite repeated complaints to the Diocese by plaintiff husband, John Doe, and DeBellis’s subsequent transfer to another church. Plaintiffs commenced this action asserting, as relevant here, a breach of fiduciary duty claim against Father DeBellis, and claims for negligent supervision and retention against the Diocese.

As we recently reaffirmed, a fiduciary relationship must exhibit the characteristics of “de facto control and dominance” (*Marmelstein v Kehillat New Hempstead: The Rav Aron Jofen Community Synagogue*, 11 NY3d 15, 21 [2008] [internal quotation marks and citation omitted]). Specifically, we held that in order to demonstrate the existence of a fiduciary duty between a cleric and a congregant involved in a formal counseling

relationship, “a congregant must set forth facts and circumstances in the complaint demonstrating that the congregant became uniquely vulnerable and incapable of self-protection regarding the matter at issue” (*Marmelstein*, 11 NY3d at 22).

[1] The complaint in this case, although drafted prior to our decision in *Marmelstein*, falls short of what is necessary to state a claim for breach of fiduciary duty. The bare allegation that Jane Doe was “a vulnerable congregant” is insufficient to establish that plaintiff was particularly susceptible to Father DeBellis’s influence. Nor does the complaint provide any other allegations to show that the parties had a relationship characterized by control and dominance.

[2] Plaintiffs’ claims for negligent supervision and retention against the Diocese likewise fail.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order, insofar as appealed from, reversed, etc.

[906 NE2d 1057, 879 NYS2d 25]

In the Matter of FRANCIS M. ALESSANDRO.

Decided March 26, 2009

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether Honorable Francis M. Alessandro should be suspended from the office of Judge of the New York City Civil Court, Bronx County, pending disposition of his request for review of a determination of the State Commission on Judicial Conduct.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals on its own motion suspended from office a Judge of the New York City Civil Court pending disposition of his request for review of a determination of the State Commission on Judicial Conduct.

APPEARANCES OF COUNSEL

Robert P. Roche for petitioner.

Robert H. Tembeckjian for respondent.

OPINION OF THE COURT

On the Court’s own motion, it is determined that Honorable Francis M. Alessandro is suspended, with pay, effective

immediately, from the office of Judge of the New York City Civil Court, Bronx County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

Concur: Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES. Taking no part: Chief Judge LIPPMAN.

[906 NE2d 1057, 879 NYS2d 25]

In the Matter of JOSEPH S. ALESSANDRO.

Decided March 26, 2009

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 and Judiciary Law § 44 (8), of whether Honorable Joseph S. Alessandro should be suspended from the office of Justice of the Supreme Court, Westchester County, pending disposition of his request for review of a determination of the State Commission on Judicial Conduct.

HEADNOTE

Judges — Suspension from Office

The Court of Appeals on its own motion suspended from office a Supreme Court Justice pending disposition of his request for review of a determination of the State Commission on Judicial Conduct.

APPEARANCES OF COUNSEL

Paul DerOhannesian for petitioner.

Robert H. Tembeckjian for respondent.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Joseph S. Alessandro is suspended, with pay, effective immediately, from the office of Justice of the Supreme Court, Westchester County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

Concur: Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES. Taking no part: Chief Judge LIPPMAN.

[906 NE2d 1057, 879 NYS2d 25]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD
LOWE, Appellant.

Argued February 19, 2009; decided March 26, 2009

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered April 24, 2008. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Ronald A. Zweibel, J., at hearing; Arlene R. Silverman, J., at trial and sentence), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the first degree.

Following an in camera *Darden* hearing, Supreme Court denied defendant's motion to suppress evidence supplied by a confidential informant.

The Appellate Division concluded that the court properly denied defendant's suppression motion; that disclosure of the hearing minutes, even with redactions, would jeopardize the safety of the informant; and that the informant's information provided ample basis to conclude that he or she had a basis for his or her knowledge that defendant was in possession of narcotics and sufficed to establish probable cause to arrest.

People v Lowe, 50 AD3d 516, affirmed.

HEADNOTE

Crimes — Unlawful Search and Seizure

The lower courts' determinations of probable cause, a mixed question of law and fact, were supported by the minutes of an in camera *Darden* hearing and were thus beyond further review by the Court of Appeals.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (Amy Donner and Steven Banks of counsel), for appellant.

Robert M. Morgenthau, District Attorney, New York City (Marc Krupnick and Alan Gadlin of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The lower courts' determinations of probable cause, a mixed question of law and fact, are supported by the minutes of the in camera hearing conducted pursuant to *People v Darden* (34 NY2d 177 [1974]), and are thus beyond our further review. Accordingly, defendant's motion to suppress was properly denied.

We have considered defendant's remaining contentions and find them to be without merit.

Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur; Chief Judge LIPPMAN taking no part.

Order affirmed in a memorandum.

FRANK ADAMO, as Executor of NORMA ROSE, Deceased, et al.,
Appellants, v BROWN & WILLIAMSON TOBACCO CORPORATION,
as Successor in Interest to THE AMERICAN TOBACCO COM-
PANY, et al., Respondents, et al., Defendant.

Submitted February 9, 2009; decided March 26, 2009

Reported below, 53 AD3d 80.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [see 11 NY3d 545 (2008)].

Chief Judge LIPPMAN taking no part.

In the Matter of VIRGINIA ADAMS et al., Appellants, v RICHARD S.
SCHOENSTADT et al., as Board of Assessors of the Town of
Schroon, Respondents.

Submitted February 2, 2009; decided March 26, 2009

Reported below, 57 AD3d 1073.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

JUDITH ASKIN et al., Respondents, v CITY OF NEW YORK et al.,
Defendants, and NEW YORK CITY HEALTH AND HOSPITALS
CORPORATION, Appellant.

Submitted January 20, 2009; decided March 26, 2009

Reported below, 56 AD3d 394.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of GEORGE INFANTE, as Administrator of the Estate of ROSEMARY A. INFANTE, Deceased, Respondent, v CAROLINE R. DIGNAN, M.D., as Medical Examiner of Monroe County, et al., Appellants.

Submitted March 2, 2009; decided March 26, 2009

Reported below, 55 AD3d 1258.

Motion by Office of the Chief Medical Examiner of the City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

Judge GRAFFEO taking no part.

In the Matter of JAZMONE S., a Child Alleged to be Neglected. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; PHILIP J., Appellant. (Proceeding No. 1.)

In the Matter of ASHLEY J., a Child Alleged to be Neglected. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; PHILIP J., Appellant. (Proceeding No. 2.)

In the Matter of ZALIKA J., a Child Alleged to be Neglected. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; PHILIP J., Appellant. (Proceeding No. 3.)

In the Matter of ETHAN J., a Child Alleged to be Neglected. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; PHILIP J., Appellant. (Proceeding No. 4.)

Submitted November 26, 2008; decided March 26, 2009

Reported below, 2008 NY Slip Op 73484(U).

Motion for reargument of motion for leave to appeal denied [see 11 NY3d 809 (2008)].

Chief Judge LIPPMAN taking no part.

In the Matter of LAVOUNTAE A. and Others, Infants. MONROE COUNTY DEPARTMENT OF HUMAN SERVICES, Respondent; LATICIA A., Appellant.

Submitted March 9, 2009; decided March 26, 2009

Reported below, 57 AD3d 1382.

Motion for assignment of counsel granted and Timothy P. Donaher, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERTO CASTELLANO, Also Known as ROBERTO CASTELAN, Appellant.

Submitted January 12, 2009; decided March 26, 2009

Reported below, 41 AD3d 184.

Motion for reargument denied [*see* 11 NY3d 850 (2008)].

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE DAVIS, Appellant.

Submitted March 9, 2009; decided March 26, 2009

Reported below, 54 AD3d 575.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT C. FELTON, Appellant.

Submitted March 23, 2009; decided March 26, 2009

Reported below, 48 AD3d 1057.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COLLIER GILLYARD, Appellant.

Submitted March 9, 2009; decided March 26, 2009

Reported below, 55 AD3d 310.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHAWN GREEN, Appellant.

Submitted February 23, 2009; decided March 26, 2009

Reported below, 50 AD3d 355.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v BRIAN HENDERSON, Appellant.

Submitted February 23, 2009; decided March 26, 2009

Reported below, 50 AD3d 439.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE KONSTANTINIDES, Appellant.

Submitted March 23, 2009; decided March 26, 2009

Reported below, 55 AD3d 752.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New

York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RASHAD MCNAIR, Appellant.

Submitted February 23, 2009; decided March 26, 2009

Reported below, 55 AD3d 332.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLAUDELL PENA, Also Known as CLAUDELL ESPINAL, Appellant.

Submitted March 16, 2009; decided March 26, 2009

Reported below, 57 AD3d 365.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM TAYLOR, Appellant.

Submitted March 9, 2009; decided March 26, 2009

Reported below, 57 AD3d 327.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

Chief Judge LIPPMAN taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JUWANNA WROTTEN, Respondent.

Submitted March 16, 2009; decided March 26, 2009

Reported below, 60 AD3d 165.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the respondent on the appeal herein.

LYLANE SUM, Appellant, v TISHMAN SPEYER PROPERTIES, INC., et al., Respondents.

Submitted February 23, 2009; decided March 26, 2009

Reported below, 37 AD3d 284.

Motion by Service Employees International Union, Local 32BJ for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

SUPERIOR ICE RINK, INC., Respondent, v NESCON CONTRACTING CORP., Doing Business as A1 DISCOUNT PAINTING, et al., Defendants, and MERCHANTS MUTUAL MARINE INSURANCE COMPANY, Appellant.

Submitted January 26, 2009; decided March 26, 2009

Reported below, 52 AD3d 688.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

WALLKILL MEDICAL DEVELOPMENT, LLC, et al., Appellants, v SWEET CONSTRUCTORS, LLC, Respondent.

Submitted January 20, 2009; decided March 26, 2009

Reported below, 56 AD3d 764.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

AWILDA CORTEZ, as Administratrix of the Estate of JUAN CORTEZ, Deceased, Appellant, v DELMAR REALTY CO., INC., et al., Respondents.

Submitted February 2, 2009; decided March 31, 2009

Reported below, 57 AD3d 313.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the denial of appellant's motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

SAMUEL COSENTINO, Appellant, v SULLIVAN PAPAIN BLOCK
McGRATH & CANNAVO, P.C., Respondent.

Submitted February 2, 2009; decided March 31, 2009

Reported below, 47 AD3d 599.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GEORGE EREMEYEV et al., Appellants, v MANHATTAN EYE, EAR &
THROAT HOSPITAL, et al., Respondents.

Submitted March 2, 2009; decided March 31, 2009

Reported below, 2008 NY Slip Op 86729(U).

Motion for reargument of motion for leave to appeal etc. denied [*see* 11 NY3d 903 (2009)]. Motion for poor person relief dismissed as academic.

Chief Judge LIPPMAN taking no part.

In the Matter of FRIENDLY CAR WASH MAIN STREET, INC., et al.,
Appellants. COMMISSIONER OF LABOR, Respondent.

Decided March 31, 2009

Reported below, 2009 NY Slip Op 61090(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of GERALD BB. and Others, Children Alleged to be Permanently Neglected. SCHENECTADY COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; SHEILA CC., Appellant. (And Other Proceedings.)

Submitted March 2, 2009; decided March 31, 2009

Reported below, 51 AD3d 1081.

Motion for reargument of motion for leave to appeal denied [see 11 NY3d 703 (2008)].

Chief Judge LIPPMAN taking no part.

In the Matter of MICHAEL S. HALE, Appellant, v DONALD SELSKY, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Decided March 31, 2009

Reported below, 57 AD3d 1136.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous judgment of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

In the Matter of JOHN D. JUSTICE, Appellant, v GEORGE B. ALEXANDER, as Chairman of the New York State Division of Parole, Respondent.

Submitted January 26, 2009; decided March 31, 2009

Reported below, 2009 NY Slip Op 61099(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL J. BROWN, Appellant.

Submitted March 9, 2009; decided March 31, 2009

Reported below, 50 AD3d 1154.

Motion to vacate this Court's February 10, 2009 preclusion order granted.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* JAMES BROWN,
Appellant, *v* JAMES CONWAY, as Superintendent of Attica
Correctional Facility, Respondent.

Submitted February 23, 2009; decided March 31, 2009

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies to the Court of Appeals from the order of the individual Justice of the Appellate Division (*see* NY Const, art VI, § 3 [b]; CPLR 5601). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* ERNEST SMITH,
Appellant, *v* FRANCISCO RIVERA, as Superintendent of
Wallkill Correctional Facility, Respondent.

Submitted February 9, 2009; decided March 31, 2009

Reported below, 2009 NY Slip Op 61096(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of the Claim of BARBARA PETERSON, Respondent,
v FACULTY STUDENT ASSOCIATION *et al.*, Appellants. WORK-
ERS' COMPENSATION BOARD, Respondent.

Submitted January 26, 2009; decided March 31, 2009

Reported below, 57 AD3d 1139.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

LORRAINE CHANIN RACHIMI, Appellant, *v* PETER RACHIMI, Re-
spondent.

Submitted February 23, 2009; decided March 31, 2009

Reported below, 57 AD3d 277.

Motion by the American Academy of Matrimonial Lawyers, New York Chapter, for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of SEANN PATRICK RILEY, on Behalf of PAUL GERMAIN, Appellant, v RALPH FABRIZIO et al., Respondents.

Submitted January 26, 2009; decided March 31, 2009

Reported below, 54 AD3d 625.

Motion to vacate this Court's January 5, 2009 order dismissing the appeal for failure to prosecute granted, and appeal reinstated [*see* 11 NY3d 921 (2009)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved.

Chief Judge LIPPMAN taking no part.

In the Matter of JULIUS R. RUGGIERE et al., Appellants, v MICHAEL BLOOMBERG et al., Respondents.

Submitted March 9, 2009; decided March 31, 2009

Reported below, 55 AD3d 840.

Motion for reargument of motion for leave to appeal denied [*see* 11 NY3d 716 (2009)].

Chief Judge LIPPMAN taking no part.

HOWARD RUKEYSER, Appellant, v LEACROFT RICHARDSON, Respondent, et al., Defendant.

Submitted February 2, 2009; decided March 31, 2009

Reported below, 43 AD3d 815.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of THOMAS D., a Person Alleged to be a Juvenile Delinquent, Appellant.

Submitted January 20, 2009; decided March 31, 2009

Reported below, 56 AD3d 666.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

TRUST FOR THE CERTIFICATE HOLDERS OF THE MERRILL LYNCH MORTGAGE INVESTORS, INC. MORTGAGE PASS-THROUGH CERTIFICATES, SERIES 1999-C1, by and through ORIX CAPITAL MARKETS, LLC, as Master Servicer and Special Servicer, Appellant, v LOVE FUNDING CORPORATION, Respondent.

Decided March 31, 2009

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

DAVID WADLER, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted January 26, 2009; decided March 31, 2009

Reported below, 57 AD3d 333.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from Supreme Court's order denying appellant's motion for reargument, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise granted.

Chief Judge LIPPMAN taking no part.
